

WELCOME

WHERE WERE WE IN THE
LAST CLASS?

Chapter Four- Special categories of Employees

- Treated somehow differently and preferentially.
- The rationale for the special treatment is associated with the specific condition the employee is in.
- Are governed by the labor law, unless otherwise provided.

1. Probationary employees

- People who are not full-fledged employees
- Is a trial period
- The purpose of probation is to test the suitability of the employee to a post in which she is intended to be assigned.
- Within the trial period, the employer is entitled to dismiss the employee without any procedure if the employer is convinced that the employee is unfit for the post.

- Art 11: In writing and 45 consecutive days.
- It is not necessary for the employer to prove that she is in fact incompetent.
- Under the Civil Service, probation period is mandatory.

2. Apprentices Art 48-52

- This is a situation through which the employer agrees to provide a person (i.e. the apprentice) ***complete and systematic training*** and the apprentice in return agrees to obey the instruction given to carry out the training.
- Apprenticeship is a type of employment contract through which the skill would be transferred.
- Strictly speaking, such an arrangement ***is not an employment relationship*** because the main interest of the employer in this relationship is not to obtain service it is rather to provide training to the apprentice.

- On the other hand, the main interest of the apprentice, in this relationship, is not also to receive wage. It is rather to acquire skill.
- Incidentally, however, the employer will obtain service from the apprentice and the apprentice will receive stipend. These facts assimilate apprenticeship arrangement with employment relation.
- Civil service law has no such arrangement.

- The contract must be ***made in writing*** and ***be attested by the Ministry*** (Art. 48(3))
 - Not all works or occupations are open to apprenticeship and hence the Ministry is empowered to spell out the list of trades open to apprenticeship and other related issues (Art.170 LP).
- Duration
 - By contract or 170(1)(h)
- Art 50: obligation
- The apprentice is beneficiary of the minimum working conditions provided under the labor proclamation.
- For instance: compensation for employment injury up on his permanent or partial disablement or death

● Termination Art 51

○ Ground

- **By law:** At the end of the training period
- **By the employer**
 - inability to discharge his obligation
 - violates the disciplinary rules of the undertaking
 - permanent incapacity
- **Unilateral termination by the apprentice** with or without notice-
Art.(3 and 4)

○ Entitlement:

- Certificate
- No reinstatement, severance pay and compensation.

- What happens if the contract of apprenticeship is not made in writing or even if written was not attested by the Ministry or both?

3 Young employees Art 89-91

- These are employees between the age of 14 and 18.
- The issue of young employees is an exception to the general rule of law of person.
- The Civil Service Proclamation, in principle, prohibits civil service employment below the age of majority (i.e. eighteen years of age).
- It, nevertheless, promises to come up with the Federal Civil Service Agency's Directive on how persons below the age of majority will be employed as civil servants (Art.14 (2)).

- Why Young employees are categorized under special employees??
 - Owing to their tender physical and mental makeup,

● The differential treatments (protections):

- **a) As regards to length of working hours and its timing: Art 90 and 91**
 - -Normal working hours seven hours per day (refer Arts.61 (1) & 90) –
 - It is prohibited to employ young employees on: Night work (i.e. between 10pm-12am)
Weekly rest days, Overtime work and Public holidays
- **b) As regards to types of work**
 - Art 89(4) not exhaustive
 - No employment for young workers in the transporting of passengers and goods by road, rail air and internal water;
 - -No employment for young workers in dock sides and warehouses involving heavy lifting;
 - -No employment for young workers in electric power generation and transmission lines,
 - -No employment for young workers in underground works (such as mines & quarries)
 - -No employment for young workers in sewerage systems and digging tunnels.

4. Female employees

- Art 42 of the constitution
- Their biological make up requires special care and attention.
- The principle of —nondiscrimination on the basis of sex
- **excepted by the inherent requirement of the job.**
- Thus in order to bring about equity the principle must be complimented by another equally important principle so called —**affirmative action.**
- See Arts.13 & 41of the Federal Civil Service and Arts. 14, 87, 88 of the L P

• TWO MODALITIES OF PROTECTION

- The law tries to regulate the situation of female employees from two angles:

1. Horizontal treatment

- Art 87 LP and Art 42 of the constitution
- Gender based protection
- Provides flat protection available to all females by virtue of being female.
- Women shall not be discriminated against as regards employment and payment, on the basis of their sex (Art.87 (1) Labor Proclamation).
- The principle of non-discrimination may be deviated from through inherent job requirement or genuine occupational qualification
- Prohibition on employment at work which are hazardous or harmful to their health.

2. Particular situation protection

- Art 87(3, 4, 5)
- Pregnancy and post natal
- No night work and overtime for pregnant women
- Limits on termination
- Maternity leave is given for three months in duration (pre & post natal) with full pay .
- Similar position has been adopted by the Federal Civil Service Proclamation in this respect (Art.41).
- The Civil Service even allows for aggregation of maternity leave.

- Reproduction is to the benefit of the family and society at large; if so, shouldn't the family and society (i.e. the state as representative of society) share the cost of maternity leave? Why should the employer be compelled to solely cover such expense?

5. Employees with disability

- The concept of disability?
 - what constitutes a disability?
- a person with disability as an individual whose equal employment opportunity is reduced as a result of his physical, mental or sensory impairments in relation with social, economic and cultural discrimination.
- **A PROCLAMATION TO PROVIDE FOR THE RIGHT TO EMPLOYMENT OF PERSONS WITH DISABILITY 568/200**

● **Protections:-**

- **The principle of non-discrimination** on grounds of disability has also been expressly inserted under the FCSP (Art.13 (1)). Though not as express as the FCSP, the LP prohibits discrimination among employees.....***or any other condition.*** (Art.14 (1) (f))
- The inherent job requirement exception to the general principle is applicable in this case, too.
- **The principle of —reasonable accommodation** for persons with disability seems to have been incorporated in this Proclamation (Art.6 of the Proclamation).
- Reasonable accommodation" means an adjustment or accommodation with respect to equipment at the work place, requirement of the job, working hours, structure of the business and working environment with a view to accommodate persons with disabilities to employment.

- This reflected the widely held belief that people with disabilities needed care and assistance, being unable and incapable of living their own lives.
- Examples of a reasonable accommodation: - an adjusted office chair (for a person with a back impairment), adapted working hours (e.g. for a person with a medical condition requiring frequent rest-breaks), - a computer keyboard with a Braille reader (for a blind person), and - the assignment of a job coach (e.g. for a person with an intellectual or mental health disability).

- When a disabled person is not in a position to exercise his equal right of employment opportunity, as a result of absence of a reasonable accommodation, such an act shall be regarded as discrimination Art 5(3).

- Who shoulders the burden of prove in discrimination cases? The Directive of EU stipulates that disability discrimination cases are subject to a reversal of the burden of proof in favor of the employee or job applicant with a disability from 2003 onwards.
- The Disability Act of Ethiopia (2008) has also incorporated this principle.
- Article 7(1) any person with disability who alleges that discrimination on ground of disability existed with respect to recruitment, promotion, placement, transfer or other conditions of employment may institute a suit to the competent court on the issue without the requirement of the burden of proof.
- 7(2) the defendant to a suit instituted pursuant to sub-article (1) of this article shall be responsible to prove that there was no act of discrimination thereof.

6. Non Ethiopian employees

- Is not to accord special protection.
- Every country has an express or implied policy on how non-nationals are to avail themselves to its domestic labor market.
- As expression of this sovereign authority, the Ethiopian legislature lays down conditions on the basis of which foreign nationals may be employed in Ethiopia. (Refer. Art.174 LP & Art.15 & 22(2) FCSP).
- Moreover, employment of foreign national is temporary and for limited duration.

- It must also be noted that there are specific areas of employment where foreigners may not have access to employment such as defense, security and foreign affairs.
- As a requirement, for a foreigner to be lawfully employed in Ethiopia, he/she needs to possess **double permits**
- **Residence Permit & Work Permit:** The Power to issue Residence Permit is vested on the Security, Immigration and Refugee Affairs Authority; while Work Permit is to be issued by the Ministry of Labor and Social Affairs.(Art.174 LP)
- Under the Civil service employment regime, there is an express provision which stipulates—a person who is not an Ethiopian national may not be eligible to be a civil servant
- Nevertheless, the same instrument seems to provide exceptions to the general rule with respect to foreigners of Ethiopian origin (Art.15 FSCP).
- Even in situations where it is impossible to fill a vacant position that requires high level professional by an Ethiopian, it is only for temporary bases that a foreigner may be employed (Art.22 (2)). Such measure also requires a directive from the Federal Civil Service Agency.

THANK YOU!!

